

observed that the requirements of Art. 123(2) EPC differed from those of Art. 83 EPC. Art. 123(2) EPC aimed more particularly to prevent inventors from obtaining protection for inventions they had not thought of at the date of filing, respectively not put into their application as filed. Art. 83 EPC aimed more particularly to prevent them from obtaining protection for "theoretical" inventions which could not be carried out at the date of filing. While in some specific instances there might be a link between the two, in the case at issue, the manufacturing of the device using the specific fabric was clearly disclosed.

c) Limitation of scope of the original claim

In T 288/92 the appellant (applicant) contended that the amendment resulted in a limitation of the original claim. The board rejected this argument on the grounds that the expression "subject-matter which extends beyond the content of the application as filed" in Art. 123(2) EPC 1973 prohibited the introduction of any technical information which a skilled person would not have objectively derived from the application as filed, so that the examination of the allowability of an amendment according to Art. 123(2) EPC 1973 was directed to the process of "derivation" (see also T 383/88), as distinct from a simple comparison of the scopes of amended and unamended subject-matters.

1.3.7 Novelty test

In T 201/83 (OJ 1984, 481) it was stated that the test for compliance with Art. 123(2) EPC 1973 was basically a novelty test, i.e. no new subject-matter may be generated by the amendment (see also T 136/88). T 17/86 (OJ 1989, 297, Corr. 415) added that novelty could be found in a limitation, the addition to a claim of a further feature, or even in the absence of one of the elements of a device. In G 2/10 the Enlarged Board held that after the amendment the skilled person "may not be presented with new technical information" and stressed the importance of applying a uniform concept of disclosure (with reference to Art. 54, 87 and 123 EPC).

The boards have highlighted the limitations of the novelty test (see T 194/84, T 133/85, T 177/86, T 118/89, T 187/91, T 288/92 and T 873/94 below). They have seldom expressly applied the novelty test in their recent case law, but it was referred to in e.g. T 60/03, T 1374/07, T 2202/08, T 2270/09 (see also T 1710/09 where the board referred to the test of T 12/81 which was developed for novelty). According to T 2537/10, the novelty test is no longer relevant for the assessment under Art. 123(2) EPC (see also T 1525/15). However, reference is still made to this test in the March 2022 version of the Guidelines (H-V, 3.2) for inclusion of additional features: If the resulting combination is novel over the application as originally filed, the amended claim does not fulfil the requirement of Art. 123(2) EPC.

Decision T 194/84 (OJ 1990, 59) related to amendments leading to the generalisation of the subject-matter of an application or to the omission of a feature. The patentee had taken the view that the amendment was admissible because the original application could properly be cited against the novelty of a more generic claim. The board took the view that this approach was based on a misapplication of the novelty test. The test for additional subject-matter corresponded to the test for novelty only in so far as both required

assessment of whether or not information was directly and unambiguously derivable from that previously presented in the originally filed application or in a prior document respectively. An amendment was not allowable if the resulting change in content of the application, in other words the subject-matter generated by the amendment, was novel when compared with the content of the original application or, looked at another way, if the said change in content would be novelty-destroying for a hypothetical future claim when the original content would not be.

T.133/85 (OJ 1988, 441) pointed out that care was necessary when applying the law relating to novelty to questions which arose in relation to Art. 123(2) EPC 1973. In T.177/86 the novelty test was described as "not very useful" for examining the admissibility of broadening a claim (see also T.150/07 for a case where the preferred embodiments of an invention were combined with the more general teaching thereof).

In T.187/91 (OJ 1994, 572) the board conceded that there was clearly a close conceptual correlation between the assessment of novelty and the assessment of what was an allowable amendment under Art. 123(2) EPC 1973. It further explained, however, that the considerations which underlay Art. 123(2) EPC 1973 were different from those that underlay Art. 54 EPC 1973: One consideration which underlies Art. 123(2) EPC is that the content of the application as filed and as published determines the matter for which protection may be sought in the claims of that application and accordingly gives an indication to the public of the protection which may be granted. A further consideration underlying the relationship between the claims and content of the European patent application is that, after appropriate amendment if necessary, the granted claims should give a fair protection for the inventive subject-matter contained in the application as filed.

In T.288/92 the board considered that the examination of the allowability of an amendment according to Art. 123(2) EPC 1973 was directed to the process of "derivation" (see also T.383/88), as distinct from a simple comparison of the scopes of amended and unamended subject-matters. In the view of the board this provided a definitive method for deciding the allowability of an amendment. Any other "test", such as the "novelty test", necessarily posed hypothetical questions.

In T.873/94 (OJ 1997, 456) the board pointed out that where a proposal for amending an application involved the **addition of a limiting feature** to a claim, applying a "novelty test" was not appropriate for determining whether or not the amendment complied with Art. 123(2) EPC 1973.

1.3.8 Non-technical subject-matter

In case T.619/05 the amendment concerned a feature not contributing to the solution of any technical problem by providing a technical effect. It was thus non-technical subject-matter. The term "subject-matter" in Art. 123(2) EPC, without a qualifier, seemed to indicate that this article applied to non-technical as well as technical subject-matter. Thus, any amendments concerning non-technical subject-matter should also be derivable from the patent application as filed. A difficulty in this connection was that a technically skilled person might not have the knowledge necessary in order to determine whether non-

technical subject-matter had been added or not. Since the members of a board of appeal were only required to be technically (or legally) qualified under Art. 21 EPC 1973, it would be up to the applicant (or patent proprietor) in such circumstances to provide evidence permitting a board to determine to its satisfaction how a person skilled in the relevant non-technical field would interpret the original patent application and the application (or patent) after amendment. For the case law on non-technical distinguishing features in the framework of novelty, see chapter I.C.5.2.8 above.

1.3.9 Claim interpretation when assessing compliance with Article 123(2) EPC

a) Standpoint of the skilled person

In T 99/13 the board recalled that, in line with the case law (see T 667/08, T 1269/06), the assessment of the requirements of Art. 123(2) EPC should be done on the same basis as for all other patentability issues (e.g. novelty and inventive step), namely from the standpoint of the skilled person on a technical and reasonable basis avoiding artificial and semantic constructions. For details see above chapter II.E.1.3.2, which also contains references to decisions confirming or rejecting the application of the jurisprudence referring to "a mind willing to understand" when assessing compliance with Art. 123(2) EPC; on this latter point, see also below in points c) and d) the abstracts of decisions T 1946/10, T 2002/13, T 1127/16, T 516/18. Generally on claim interpretation, see also chapter II.A.6.1.

b) Claim feature in itself imparts clear credible teaching

The board in T 1018/02 stated that although a claim was not to be interpreted in a way which was illogical or did not make sense, the description could not be used to give a different meaning to a claim feature which in itself imparted a clear, credible technical teaching to the skilled reader. That also applied if the feature had not initially been disclosed in the form appearing in the claim (see also e.g. T 1195/01, T 474/15). In the case at issue the claim feature in question would have had to be deleted to achieve consistency with the original disclosure; however this was not possible under Art. 123(3) EPC 1973. See also T 197/10, which (in the context of examination of novelty) confirmed the approach that, in the event of a discrepancy between clearly defined claims and the description, those elements of the description not reflected in the claims are not, as a rule, to be taken into account.

In T 30/17 the board (considering added subject-matter) noted that Art. 69 EPC and its Protocol did not provide a basis for excluding what is literally covered by the terms of the claims, as these provisions related to the patent's (or patent application's) "extent of protection", which was primarily of concern in infringement proceedings. The board emphasised that in examination and opposition proceedings the value of future **legal certainty** was paramount. In the case in hand, the respondent (proprietor) had argued that the expression at issue in claim 1 as granted was linguistically meaningless and that the meaning could only be found by taking into consideration the claim context, the description and the general knowledge of the skilled person in the art. The board, however, considered that the expression was per se not ambiguous and emphasised that a (purported)

discrepancy between the claims and the description was not a valid reason to ignore the clear linguistic structure of a claim and to interpret it differently (see e.g. T 431/03 and T 197/10) or to give a different meaning to a claim feature which in itself imparts a clear credible technical teaching to the skilled reader (see e.g. T 1018/02 and T 1395/07). See, however, also T 195/20 (in which the board underlined that the skilled person would not stop at determining the semantic roles of words in a phrase).

c) Illogical and technically inaccurate claim features may not be disregarded

In T 2002/13 the board referred to established case law, in particular T 190/99 (see chapter II.E.2.3.3) according to which the claims must be read with a mind willing to understand and to make technical sense of them, thereby ruling out illogical or technically meaningless interpretations. The board recalled that the claims were directed to a person skilled in the art. However, the case law did not allow the reader to disregard an illogical or technically inaccurate feature of a claim and hence to interpret such a feature in a correct manner. Thus, if a claim included contradictory features, this contradiction could not be resolved by merely disregarding the technically inaccurate feature and considering only the convenient technically meaningful feature. All the less so when assessing the compliance of these two features with Art. 123(2) EPC. In the board's view, any other approach would provide an unwarranted advantage to the patentee/appellant. See also the abstract of T 81/13 in chapter II.E.1.4.7 "Elimination of inconsistencies and unclear features".

d) Ambiguous features – role of description and drawings

In T 23/02 the board said that although the claims as originally filed contained no reference to a **method of measurement** for the average particle diameter, that did not mean that any method could be used to determine that parameter. If anything, the claims raised doubts as to how the average particle diameter had to be determined, in particular because the skilled person would be aware that the measuring method is decisive in particle size analysis. Therefore the skilled person would use the description and drawings when deciding how the average particle diameter was to be measured. They would then conclude that, when properly interpreted in light of the original description, the claims as originally filed contained restrictions as to the measuring method for the average particle diameter. For the case law on the need to include the measuring method of a parameter in the claim, see however chapter II.C.6.6.9 "Analytical measuring methods".

In T 1946/10 the board held that according to established jurisprudence the skilled person interprets a claim with a mind willing to understand, so as to arrive at an interpretation which is technically sensible and takes into account the whole disclosure of the patent. Though he strives in principle to understand a claim within the wording and terms of the claim itself, he may, where he encounters ambiguities, need to consult the description and drawings to gain a better understanding. Based on the understanding of the added feature gained by this claim interpretation, the board arrived at the conclusion that adding the feature to claim 1 as originally filed in isolation from its structural and functional context presented a new teaching not originally disclosed. In the same vein, see T 2350/15 with reference to T 1592/14.

In T. 516/18, in order to be able to compare the claimed subject-matter with the disclosure provided by the application as filed, the board first determined the effective subject-matter resulting from the amendments in the original claims. The board recalled that, the claim must be read and construed by a person skilled in the art with a mind willing to understand, thereby giving the words the meaning and the scope that they have in the technical field relevant for the invention, including in view of the technical content of the claim. However, according to established case law of the boards of appeal, using the description and the drawings to interpret the claims was considered admissible and even necessary if the person skilled in the art, in an attempt to construe the claim with a mind willing to understand, was confronted with obscure and/or inconsistent features. In the view of the board, this was presently the case.

In T. 1127/16, however, the board held that the fact that a claim of a patent was to be construed by a mind willing to understand (T. 190/99) did not mean that the description and the drawings had automatically to be consulted when an "ambiguous" feature (i.e. a feature which at least theoretically allows more than one interpretation) occurred in the claim, or where the claim as a whole included one or more inconsistencies, in order to resolve that unambiguity or inconsistency. Rather, the claim should essentially be read and interpreted **on its own merits** (T. 1018/02, T. 1279/04, T. 1404/05, T. 197/10). The board underlined that otherwise an applicant (patent proprietor) could arguably dispense with providing a clear and unambiguous formulation of claim features, e.g. during the grant proceedings, in order to be able to fall back on a more description-based interpretation at will during subsequent opposition proceedings. Analysing claim 1 of the main request on a linguistic level, the board decided that the feature at issue would be read in a certain way. On a technical level, the skilled person would also conclude that this interpretation was entirely clear, coherent, and consistent with the other features of claim 1. This interpretation of the feature at issue lead, however, to the infringement of Art. 123(2) EPC, since no such feature was disclosed in the application as filed.

In T. 195/20 the board held that the issue was not how a linguist would construe the meaning of the sentence in question but how the person skilled in the art would. While a linguistic analysis could be helpful in determining how a skilled person would understand a phrase in a claim, the skilled person would not stop at determining the semantic roles of words in a phrase but would interpret the phrase in the context of the claimed subject-matter and the application as a whole.

On a related issue, see also chapter II.E.1.4.7 "Elimination of inconsistencies and unclear features" below.

e) Construction with regard to all technically logical interpretations

In T. 1408/04 the board held that while the claims had to be interpreted by a "mind willing to understand" and not by "a mind desirous of misunderstanding", this was understood to mean only that technically illogical interpretations should be excluded (see T. 190/99). The terms to be interpreted had a wider technical interpretation than envisaged by the appellant. A "mind willing to understand" did not require that a broad term needed to be interpreted more narrowly (even if the narrow interpretation referred to a structure which